

Argument for the judge.

Mr. Dawes, who filed a brief of Mr. Allen, A. G. of Massachusetts :

I. Both the admission and removal of attorneys are judicial acts.*

II. It is a general principle, applicable to all magistrates, even to those of inferior jurisdiction, that they are not liable to an action for any judicial act done within their jurisdiction. In reference to inferior magistrates, it has been said that they are only protected while they act within their jurisdiction.

But in reference to judges of courts of general jurisdiction, the rule is not thus limited. Such judges are not liable to actions for their judicial acts, whether within or without their jurisdiction.

1. The extent of a judge's jurisdiction is often the very question which he is called on judicially to determine. To decide upon this question is as much a judicial decision as any other. And the question may be a difficult and doubtful one. Yet he is bound to decide, and to decide according to his judgment. But shall he decide in fear or peril of a lawsuit?

2. The reason applicable to inferior magistrates does not apply. There must be some point in the administration of the law where unqualified confidence is to be reposed and acknowledged; some ultimate repository of justice, so far as individuals are concerned. In England, the king's judges

Finally, 296; *Miller v. Hope*, 2 Shaw's Appeal Cases, H. L. 125; *Calder v. Halket*, 3 Moore's Privy Council, 28; *Taaffe v. Downes*, Id. 36; *Gahan v. Lafitte*, Id. 382; *Hill v. Bigge*, Id. 465; *Wise v. Withers*, 3 Cranch, 331; *Anderson v. Dunn*, 6 Wheaton, 204; *Kendall v. Stokes*, 3 Howard, 89; *Mitchell v. Harmony*, 13 Id. 144; *Dynes v. Hoover*, 20 Id. 65; *Yates v. Lansing*, 5 Johnson, 222; *Bigelow v. Stearns*, 19 Id. 39; *Cunningham v. Bucklin*, 8 Cowen, 178; *Horton v. Auchmoody*, 7 Wendell, 200; *Bevard v. Hoffman*, 18 Maryland, 479; *Lining v. Bentham*, 2 Bay, 1; *Miller v. Grice*, 2 Richardson, 27; *Greene v. Mumford*, 5 Rhode Island, 472; *Scovil v. Geddings*, 7 Ohio, 566; *Piper v. Pearson*, 2 Gray, 120; *Clarke v. May*, Id. 410; *Kelly v. Bemis*, 4 Id. 83; *Noxon v. Hill*, 2 Allen, 215; *Revill v. Pettit*, 3 Metcalf, Kentucky, 314.

* Ex parte Secombe, 19 Howard, 9, 15; Ex parte Garland, 4 Wallace, 378, 379.